Minutes of the
General Government Committee Meeting
Held in the River Plate Room, Ajax Town Hall
At 1:00 p.m. on June 10, 2019

Alternative formats available upon request by contacting:
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Present:	Chair - Councillor	L. Bower
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
	Mayor	S. Collier

1. Call to Order

Chair Bower called the meeting to order at 1:00 p.m.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of Minutes

3.1 Regular Meeting

Moved by: M. Crawford

That the Minutes of the regular meeting of the General Government Committee held on May 13, 2019 be adopted.

CARRIED

3.2 Closed Session

Moved by: S. Collier

That the Minutes of the Closed Session of the General Government Committee held on May 13, 2019 be adopted.

CARRIED

4. Consent Agenda

Members separated items 4.1, 4.2, 4.3, 4.5, 4.6, 4.7, 4.9, 4.10, 4.11, 4.12, 4.13, 4.14, 4.15, 4.16, 4.17, 4.18, 4.19, 4.20 and 4.22 for discussion.

Moved by: A. Khan

That items 4.4, 4.8, and 4.21 of the consent agenda be adopted.

CARRIED

With the consent of members present, Chair Bower advanced item 4.20 in the order of business.

4.20 Election Sign By-law

Committee Members asked questions regarding aligning signage rules with the Region of Durham, prohibition of election signs on Town roads, and the permitted time period for election signs. Derek Hannan, Acting Director of Legislative & Information Services and Manager of By-law Services, responded to questions from Committee Members, reviewed the proposed changes within the draft by-law, and discussed permitted time periods for election signs in other Durham area municipalities.

Motion to Suspend the Rules of Procedure

Moved by: S. Lee

That the rules of procedure be suspended in order to receive an unscheduled delegation regarding the proposed Election Sign By-law.

CARRIED ON 2/3RDS

Mr. Adrian Lambert addressed the Committee and commended Council for the proposed changes to the Town's sign by-law. Mr. Lambert inquired about distance separation on regional roads and signage on Town boulevards. D. Hannan responded to questions from the delegate and reviewed local and regional election sign rules. Mr. Lambert noted that he would support a similar prohibition of election signs on regional roads.

Members discussed the proposed election sign by-law and considered reducing the number of days that election signs would be permitted for a municipal election.

Main Motion

Moved by: S. Lee

That the proposed Election Sign By-law (ATT-1) be approved by Council.

Amendment

Moved by: S. Collier

That the draft by-law be amended to read that the earliest date to erect an election sign during a municipal election shall be 25 days before Election Day.

CARRIED

Main Motion as Amended

Moved by: S. Lee

That the proposed Election Sign By-law (ATT-1) be approved by Council as amended.

CARRIED

4.1 Town of Ajax – Quality Management System – Return to ISO

Committee Members inquired about the purpose of ISO registration and the costs associated with annual recertification. Shane Baker, Chief Administrative Officer, responded to questions from Committee Members and reviewed the benefits of ISO registration for the Town, and the annual recertification fees associated with maintaining ISO registration.

Moved by: S. Lee

1. That this report be received for information; and

2. That Council endorse ISO 9001:2015 as a model to promote excellence in customer service.

CARRIED

4.2 Sanctuary / Access Without Fear Policy

Committee Members asked questions regarding timing of the proposed policy and the benefits of its approval. Jai Sahak, Diversity and Community Engagement Coordinator, reviewed the purpose and contents of the policy and responded to questions from Committee Members.

Moved by: M. Crawford

That Council approve the Sanctuary / Access Without Fear Policy for the Town of Ajax ensuring all residents have full rights and access to municipal-run services regardless of immigration status.

CARRIED

4.3 2018 Operating Budget Surplus and Net Year End Reserve Allocations

Committee Members asked questions regarding allocations to reserves, creation of a new Education and Training Reserve, budgeting estimate process for surplus funds, and the next update to the Financial Sustainability Plan. Sheila Strain, Director of Finance/Treasurer, responded to questions from Committee Members and explained the budgeting and allocations associated with the operating budget surplus. S. Strain discussed the proposed Education and Training Reserve and reviewed timing for updates to the Financial Sustainability Plan.

Main Motion

Moved by: R. Tyler Morin

1. That the report on the 2018 Operating Budget Surplus be received for information.

2. That Council approve the establishment of the Education and Training Reserve.

3. That Council approve the revised 2018 Net Year End Allocations to Reserves, as recommended by the Director of Finance in accordance with the Financial Sustainability Plan, as follows:

Reserve	Allocation
Capital Contingency Reserve	$827,470.11
Education and Training	$100,000.00

Amendment

Moved by: S. Collier

1. That the motion be amended to remove the establishment of the Education and Training Reserve, and that the proposed allocation of funds be directed to the capital contingency reserve; and

2. That staff be directed to consider the implementation of the Education and Training Reserve through a future update to the Financial Sustainability Plan.

CARRIED

Main Motion as Amended

Moved by: R. Tyler Morin

1. That the report on the 2018 Operating Budget Surplus be received for information.

2. That Council approve the revised 2018 Net Year End Allocations to Reserves, as recommended by the Director of Finance in accordance with the Financial Sustainability Plan, as amended:

Reserve	Allocation
Capital Contingency Reserve	$927,470.11

CARRIED

4.4 **Indexing of Municipal Development Charges**

Moved by: A. Khan

That the report on Indexing of Municipal Development Charges be received for information.

CARRIED

4.5 Updated Purchasing By-Law

Committee Members asked questions regarding restrictions on local preference policies for competitive purchases, proposed increases to the purchasing authorities for staff, and policies for reporting on over-budget projects. Paul Hewitt, Manager of Purchasing, responded to questions from Committee Members and reviewed legislation regarding local preference policies. S. Strain discussed the proposed increases to staff purchasing authorities and the process for reporting over-budget projects to Council. Members discussed the proposed limits within the draft purchasing by-law.

Moved by: S. Collier

That the revised Purchasing By-Law be presented to Council for approval.

CARRIED

4.6 Capital Expenditure Control Policy Update

Committee Members discussed the capital expenditure control policy and considered implementing a percentage-based threshold. S. Strain reviewed the reporting process in the policy and discussed possible amendments to implement a percentage-based threshold.

Main Motion

Moved by: S. Lee

That Council approve the updated Capital Expenditure Control Policy.

Amendment

Moved by: S. Collier

1. That section 3.1.2, sub-point 3 of the Capital Expenditure Control Policy be amended to read as follows:

    - *Projects projected to be Over Budget in excess of $100,000 or 20% of the approved budget amount, whichever is greater.*

2. That staff be directed to include any necessary revisions to the draft Purchasing By-law to give effect to this amendment, for approval at the June 17th Council meeting.

CARRIED

Main Motion as Amended

Moved by: S. Lee

That Council approve the updated Capital Expenditure Control Policy as amended.

CARRIED

4.7 2020 Budget & Forecast Timetable

Committee Members inquired about the schedule of public meetings for the 2020 Capital Budget and Long Range Capital Forecast. Alexander Harras, Manager of Legislative Services / Acting Clerk, reviewed the schedule of meetings.

Moved by: S. Lee

That the report on the 2020 Budget & Forecast Timetable be received for information

CARRIED

4.8 Update – Memorandum of Understanding – Ajax Community Fund

Moved by: A. Khan

That the updated by-law for the Memorandum of Understanding with the Durham Community Foundation for the operating of the Ajax Community Fund be presented to Council for approval.

CARRIED

4.9 Service Agreement with Pickering Auxiliary Rescue Association

Committee Members asked questions regarding contributions from neighbouring municipalities to the Pickering Auxiliary Rescue Association (PARA). Dave Lang, Fire Chief, reviewed contributions to PARA from other Durham municipalities.

Moved by: S. Collier

That the agreement between the Corporation of the Town of Ajax and Pickering Auxiliary Rescue Association be approved.

CARRIED

4.10 Assumption of Subdivisions S-A-2007-03 Mulberry Meadows Phases 1A, 1B, 2 and 3

Committee Members asked questions regarding financial implications of assuming subdivisions. Dave Meredith, Director of Planning and Development Services, reviewed the process for assumption of subdivisions.

Moved by: A. Khan

(1) That the works and services within the following Plans of Subdivision be assumed by the Town:

a) (S-A-2007-03) – Mulberry Meadows Phase 1A
Owner: Ajax Audley Development Limited
Agreement Date: September 16, 2009
Registered Plan: 40M-2404 (Pond Block 887 not included)
Refer to Appendix "A"

b) (S-A-2007-03) – Mulberry Meadows Phase 1B
Owner: Ajax Audley Development Limited
Agreement Date: October 30, 2009
Registered Plan: 40M-2407
Refer to Appendix "B"

c) (S-A-2007-03) – Mulberry Meadows Phase 2
Owner: Ajax Audley Development Limited
Agreement Date: September 22, 2010
Registered Plan: 40M-2429
Refer to Appendix "C"

d) (S-A-2007-03) – Mulberry Meadows Phase 3
Owner: Ajax Audley Development Limited
Agreement Date: November 11, 2011
Registered Plan: 40M-2463
Refer to Appendix "D"

(2) That the corresponding Assumption By-laws be prepared for an upcoming Council meeting.

CARRIED

4.11 Proposed Durham Regional Official Plan Amendment: Rural Water and Sanitary Service Connections (ROPA 2019-001)

Committee Members asked questions regarding water servicing availability, agricultural uses in greenbelt protected lands, "Envision Durham" Municipal Comprehensive Review, and serviced employment lands in Ajax. Stev Andis, Supervisor of Planning Policy & Research, and Geoff Romanowski, Manager of Planning, responded to questions from Committee Members.

Moved by: S. Lee

1. That staff's comments outlined in this report be endorsed and submitted to the Region of Durham Planning and Economic Development Department in response to proposed Regional Official Plan Amendment 2019-001 – Rural Water and Sanitary Service Connections.

CARRIED

4.12 Draft 2018-2022 Lake Ontario Lakewide Action and Management Plan

Committee Members discussed the contents of the report and the recently held 2019 Great Lakes Saint Lawrence Cities Initiative conference. Michael Sawchuck, Senior Planner, reviewed the comments within the report.

Moved by: J. Dies

1. That the Report entitled "Draft 2018-2022 Lake Ontario Lakewide Action and Management Plan" be received for information.

2. That staff's comments, included as Attachment 1 to this Report, be endorsed and submitted to the Lake Ontario Partnership via the Canadian GLEC Secretariat, Great Lakes Environment Office at Environment and Climate Change Canada.

3 That this Report, Attachment 1, and a copy of Council's resolution be forwarded to Rod Phillip, Ajax MPP and Minister of Environment, Conservation and Parks; Mark Holland, Ajax MP; Pickering-Ajax Citizens Together Protecting Our Waterfront (PACT-POW); Great Lakes and St. Lawrence Cities Initiative; Council of Canadians; Ecojustice; Lake Ontario Waterkeeper; Environmental Defence; Sierra Club; Toronto and Region Conservation Authority; Central Lake Ontario Conservation Authority; Conservation Ontario; and lakeshore municipalities in Durham Region.

CARRIED

4.13 Contract Award – Paradise Park Washroom Facility & Site Improvements

Committee Members asked questions regarding components of the project, differences between the project's budget and bids received, natural playground and associated features, contingency budgeting, costs associated with delaying the capital project, public consultations, and consequences of cancelling the tender.

Catherine Bridgeman, Director of Operations and Environmental Services, reviewed the project's history, public consultation process, and the various design elements of the capital project. S. Strain reviewed the Town's capital contingency budgeting practices. C. Bridgeman discussed costs associated with completing the design work and the implications of cancelling the tender.

Main Motion

1. That Council award the contract for Paradise Park Washroom Facility & Site Improvements, to Torcom Construction Inc in the amount of $2,943,470.33 (inclusive of all taxes).

2. That Council award the contract for Contract Administration Paradise Park Washroom Facility & Site Improvements, to AECOM Canada Architects in the amount of $110,667.68 (inclusive of all taxes).

3. That Council approve funding of $657,914.77 to be allocated to Capital Account No. 1003611 from the Development Reserve.

Referral Motion

Moved by: S. Collier

That the contract for the Paradise Park Washroom Facility and Site Improvements be cancelled, and that staff be directed to report back to Council with options and costs to complete the landscaping and trail connection portion to be considered in the 2020 capital budget.

CARRIED

4.14 Contract Award - Storm Sewer Infrastructure Maintenance

Committee Members asked questions regarding the recommendations within the report. Jamie Blemkie, Supervisor of Operations, responded to questions from Committee Members.

Moved by: S. Collier

CATCHBASIN CLEANING:

1. That Council award the contract for Catchbasin Cleaning to Superior Catchbasin Services Limited in the estimated amount of $144,112.29 (inclusive of all taxes), for a period of one year.

2. That Council authorize Staff to renew the contract for an additional four, one year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $652,199.08 (inclusive of all taxes).

STORM SEWER FLUSHING:

1. That Council award the contract for Storm Sewer Flushing to Multi-Vac Services Limited in the estimated amount of $48,823.06 (inclusive of all taxes), for a period of one year.

2. Council authorize Staff to renew the contract for an additional four, one year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $220,955.18 (inclusive of all taxes).

HYDRO EXCAVATION:

1. That Council award the contract for Hydro Excavation to Multi-Vac Services Limited in the estimated amount of $8,234.87 (inclusive of all taxes), for a period of one year.

2. That Council authorize Staff to renew the contract for an additional four, one year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $37,268.01 (inclusive of all taxes).

CARRIED

4.15 Contract Award - Supply & Delivery of LED Streetlights

Committee members asked questions regarding rebates available for installation of LED streetlights. Rick Chalmers, Supervisor of Infrastructure & Asset Management, responded to questions from Committee Members and reviewed available rebates.

Moved by: S. Collier

That Council award the contract for Supply & Delivery LED Streetlight Luminaires, to GUILLEVIN INTERNATIONAL CO. in the amount of $570,955.61 (inclusive of all taxes).

CARRIED

4.16 Final Report – Quaker Meeting House

Committee members asked questions regarding funding for the over-budget amount, the process to report on projects that are over-budget, and future uses of the facility. C. Bridgeman responded to questions from Committee Members and reviewed the project's history. S. Strain reviewed the reporting process for over-budget projects and discussed federal gas tax funding available for municipal heritage structures. Tracey Vaughan, Director of Recreation, Culture & Community Development, discussed uses for the new facility.

Moved by: A. Khan

1. That the report on the net over-expenditure of $219,552.41 (net of HST rebate) on the Quaker Meeting House Construction, Capital Account No. 980611, previously award to AECOM, be received for information.

2. That the report on the net over-expenditure of $868,641.48 (net of HST rebate) on the Quaker Meeting House Construction, Capital Account No. 980611, previously award to Clifford Restoration Limited, be received for information.

3. That Council approve funding of $1,126,918.81 to be allocated to Capital Account No. 980611 from Federal Gas Tax Reserve.

CARRIED

4.17 Contract Award – Library Shelving ARC Phase 2

Committee Members inquired about the cost estimates included for ARC Phase 2. C. Bridgeman responded to questions from Committee Members.

Moved by: S. Collier

That Council award the contract for Library Shelving as a single source to Palmieri Furniture in the amount of $354,446.54 (inclusive of all taxes).

CARRIED

4.18 Contract Award – Supply & Delivery ~ Pumper/Rescue Fire Truck

Committee Members asked questions regarding the disposal and auctioning process for retired vehicles. D. Lang responded to questions from Committee Members.

Moved by: S. Lee

1. That Council award the contract for the supply and delivery of a Pumper/Rescue Fire Truck to Dependable Emergency Vehicles a division of Dependable Truck and Tank Limited in the amount of $1,095,987.00 (inclusive of all taxes).

2. That Council approve funding of $11,970.24 to be allocated to Capital No. 998811 from Vehicle/Equipment Replacement Reserve Fund.

CARRIED

4.19 Closure of the Ajax Public Library Village Branch

Committee Members discussed the contents of the report and inquired about public notice of the closure and feedback from the community. Donna Bright, Chief Librarian & Executive Officer, responded to questions from Committee Members and reviewed feedback received regarding the closure.

Moved by: S. Lee

That the report "Closure of the Ajax Public Library Village Branch" be received for information.

CARRIED

4.21 Sediment and Erosion Control By-law

Moved by: A. Khan

That the proposed Sediment and Erosion Control By-law (ATT-1) be approved by Council.

CARRIED

4.22 Town Boulevard and Private Driveway Alterations

Committee Members discussed the contents of the report and asked questions regarding tree rings installed on town boulevards, driveway widening on private property compared to Town boulevards, feedback received from partner agencies, permissions for different residential zones, and enforcement practices. D. Hannan and G. Romanowski responded to questions from Committee Members. D. Hannan reviewed rules prohibiting modifications to Town boulevards, feedback received from partner agencies, and enforcement practices for boulevard modifications. G. Romanowski reviewed permitted driveway widths within residential zones in the Town's zoning by-law.

Moved by: R. Tyler Morin

1. That no changes be made to the current Road Occupancy/Road Closure By-law;

2. That Council endorse the use of the "maximum driveway width" standard in Town's Zoning By-law instead of the "maximum curb cut" standard to regulate apron width in the R1-D, R1-F, and R2-A residential zones, as outlined in this report; and

3. That Council direct staff to begin a "Public Consultation" process for a Town-initiated Zoning By-law Amendment to modify the parking and landscaping requirements on private residential properties as outlined in this report.

4. That Council direct By-law Services staff to resume with enforcement activities for all individuals that have altered the Town's boulevards before or during the suspension of enforcement activities since December 2018.

CARRIED

5. Discussion

5.1 Review of Community Safety Zones

John Grieve, Supervisor of Transportation, reviewed the contents of the written report and the recommendations contained therein. Committee Members asked questions regarding how locations were selected for review, criteria used to evaluate locations, differences between community safety zones and school zones, future implementation of automated speed enforcement, and the regulatory framework. J. Grieve and Kevin Tryon, Manager of Development Engineering & Transportation Planning, responded to questions from Committee Members. J. Grieve reviewed the location selection process, development of criteria, regulatory framework, and differences between community safety zones and school zones. K. Tryon discussed traffic management and calming practices.

Main Motion

1) That the recommendations as outlined with the report entitled "Review of Community Safety Zones" be approved by Council;

2) That staff prepare the appropriate amendments to the Traffic By-Law for the inclusion of the new Community Safety Zones for an upcoming Council Meeting;

3) That staff add the costs for the signs of the new Community Safety Zones as a onetime cost in the Operating Budget for consideration in 2020; and

4) That the Community Safety Zone Warrant outlined in this report be endorsed for use by Town staff in the future to evaluate potential zones in the Town of Ajax;

Referral Motion

Moved by: S. Collier

That the matter be referred back to staff to be brought back to a future meeting of the appropriate committee of Council at the same time as a report regarding automated speed enforcement.

CARRIED

5.2 Durham Region Strategic Road Safety Action Plan and Town of Ajax Initiatives

John Grieve, Supervisor of Transportation, reviewed the contents of the written report and the recommendations contained therein. Committee Members asked questions regarding automated speed enforcement pilot programs. J. Grieve responded to questions from Committee Members.

Moved by: S. Collier

1) That the report entitled "Durham Region Strategic Road Safety Action Plan and Town of Ajax Initiatives" be received for information.

2) That Ajax Staff continue their participation with the Durham Region Vision Zero initiative, identifying opportunities to advance Town specific initiatives and policies in support of Vision Zero

CARRIED

6. Presentations

6.1 Durham Community Energy Plan

Stev Andis, Supervisor of Planning Policy & Research, delivered a presentation regarding the Durham Community Energy Plan. S. Andis discussed the purpose of the plan, scope, steering committee, energy scenarios described in the plan, numbers and demographics, programs to achieve the low carbon pathway, and next steps.

Committee Members asked questions regarding encouraging implementation of the plan, and implementing green development standards for new construction. S. Andis responded to questions from Committee Members.

Moved by: S. Collier

1. That Council endorse in principle the Durham Community Energy Plan, subject to Council's further review and decision on the Town's ability to support and participate in the implementation of programs identified in the Durham Community Energy Plan.

2. That, as program tasks and required funding sources are identified, staff report back to Council on the financial and staff resources that would be required to implement the programs identified in the Durham Community Energy Plan.

CARRIED

6.2 Ajax Climate Risk & Resiliency Plan (ACRRP) and ACRRP Implementation Strategy

Stev Andis, Supervisor of Planning Policy & Research, delivered a presentation regarding the Ajax Climate Risk & Resiliency Plan (ACRRP). S. Andis discussed the community climate adaptation study, framework, vision and goals of the ACRRP, objectives, implementation strategy for each Town department, and monitoring and reporting.

Committee Members inquired about examining the value of natural assets such as watersheds. S. Andis responded to questions from Committee Members.

Moved by: R. Tyler Morin

That Council adopt the Town of Ajax Climate Risk & Resiliency Plan contained in Attachment 1 and the Town of Ajax Climate Risk & Resiliency Plan Implementation Strategy contained in Attachment 2.

CARRIED

6.3 Community Safety Strategy Update

Cayla Da Silva, Community Development Coordinator, and Robert Gruber, Manager, Community & Cultural Development, delivered a presentation regarding the Community Safety Strategy. C. Da Silva and R. Gruber discussed the background of the strategy, provincial planning framework, identifying priority risks, emerging trends, determining outcomes, community partners, selection of strategies, and implementation and review. Committee Members discussed the development of the plan and the interview process undertaken with Members of Council. Committee Members thanked C. Da Silva and R. Gruber for their presentation.

7. Closed Session

None

8. Adjournment (6:18 p.m.)

Moved by: R. Tyler Morin

That the June 10, 2019 meeting of the General Government Committee be adjourned.

CARRIED

Chair

D-Clerk